

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

CIRCUIT COURT NO. _____

IN RE:

LOWER COURT NO. _____

EXPUNGEMENT OF RECORD OF:

participant/case info review zone

(Full Name of Movant)

**MOTION FOR EXPUNGEMENT OF CRIMINAL RECORDS DUE TO ACQUITTAL OR
DISMISSAL FOR REASONS OTHER THAN ENTRY OF A PLEA**

Comes now the movant, pro se, and in support of his or her Motion for Expungement of Criminal Record does hereby allege and state as follows:

1. That on _____, the movant was cited by the
(Date of Arrest)
_____ for _____
(Arresting or Charging Law Enforcement Agency) (Charges or Offense(s))

2. That on _____, this matter was dismissed by the
(Date of Dismissal)
_____ Court of _____ County, due to
(Type of Court: Municipal, Magistrate, Circuit)

(Reason for Dismissal.)

3. I, _____ have never been convicted of a felony.
(Movant's Name)

4. That 60 days have elapsed since the above referenced dismissal and that same dismissal was not in exchange for a guilty plea to another offense.

5. There are no current charges or proceedings pending relating to the matter for which I am moving for expungment.

Wherefore, pursuant to W.Va. Code § 61-11-25 (2000), the movant respectfully requests that this Honorable Court expunge all records relating to the arrest, charge or other matters arising out of the arrest or charges, including but not limited to those records delineated in W.Va. Code § 61-11-25 (2000).

signature/date review zone

Signature of Movant

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(Full Name of Movant)

CERTIFICATE OF SERVICE

I do hereby certify that I have this day given a true and correct copy of the foregoing Motion for Expungement of Criminal Records Due to Acquittal or Dismissal for Reasons Other Than Entry of a Plea to the _____ County Prosecuting Attorney's Office, at

Address _____

Address _____

by the following method:

First Class Mail

Hand Delivery

Certified Mail – Return Receipt

Date

Signature of Movant

[signature/date review zone](#)